

An Act

ENROLLED HOUSE
BILL NO. 4076

By: Caldwell (Trey), Kane, and
Hill of the House

and

Hall and Haste of the
Senate

An Act relating to the Oklahoma Department of Commerce; making an appropriation to the Pandemic Relief Primary Source Revolving Fund; identifying source; establishing amounts; providing purposes; requiring and limiting the utilization of funds; authorizing certain memorandums of understanding; limiting scope; prohibiting certain memoranda terms; authorizing and limiting the promulgation of rules and utilization of procedures; requiring certain reports and submissions to certain entities; requiring appearance before certain joint committee; limiting duration of certain requirements; providing determination process; providing for noncodification; and declaring an emergency.

SUBJECT: Oklahoma Department of Commerce

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

There is hereby appropriated to the Pandemic Relief Primary Source Revolving Fund from any monies not otherwise appropriated from the Statewide Recovery Fund established in Section 255 of Title 62 of the Oklahoma Statutes, the sum of Twenty-one Million Six Hundred Forty Thousand Ninety-one Dollars (\$21,640,091.00) or so much thereof as may be necessary for award by the Oklahoma Department of Commerce through grants to enhance industrial parks, airparks, and ports to cover costs related to water, wastewater, sewer, and broadband projects eligible under the provisions of the

American Rescue Plan Act of 2021 that support sites or surrounding communities identified by the Department as having such needs prior to the passage of this act and as discussed in the Transportation, Infrastructure, and Rural Development Working Group. Such funds shall be utilized in a manner consistent with the recommendations adopted by the Joint Committee on Pandemic Relief Funding on April 15, 2026.

SECTION 2. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

The Oklahoma Department of Commerce may enter into memorandums of understanding with other agencies of the State of Oklahoma for the auditing, documentation, evaluation, implementation, oversight, reporting, and management of funds and associated efforts related to the appropriations made in this act; provided, that no such memorandum of understanding shall require or include, as an option or condition, the direct or practical transfer or relinquishment of control by the agency appropriated such funds to budget, expend, allocate, and request the distribution of the funds appropriated by this act.

SECTION 3. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

The Oklahoma Department of Commerce may promulgate rules, utilize existing rules, establish procedures, and utilize existing procedures to implement the provisions of this act; provided, such rules and procedures do not conflict with or impede the provisions of this act.

SECTION 4. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

A. The Oklahoma Department of Commerce shall:

1. Submit to the Chairs of the Joint Committee on Pandemic Relief Funding, or any successor Oklahoma House of Representatives or Oklahoma State Senate legislative committee or joint committee, as designated by the Speaker of the Oklahoma House of Representatives and the President Pro Tempore of the Oklahoma State Senate:

- a. a written or electronic quarterly report detailing the budgeting, expenditure, and management of all monies appropriated in this act, and
- b. a copy of all memorandums of understanding and contracts with third parties entered into by the Oklahoma Department of Commerce to facilitate, assist, or administer powers and duties provided to the Department under the provisions of this act; and

2. At the Joint Committee on Pandemic Relief Funding's request, appear before the Joint Committee no later than six (6) months after the effective date of this act, and as otherwise requested by the Joint Committee, to provide a status update regarding the implementation of the provisions of this act.

B. The provisions of subsection A of this section shall remain applicable for the period of time that monies appropriated under this act are being budgeted, expended, or managed in the state. The ending of such period shall be determined by the State Treasurer, and shall be reported to the Governor, the Speaker of the Oklahoma House of Representatives and the President Pro Tempore of the Oklahoma State Senate.

SECTION 5. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 21st day of April, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 27th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____